

		burden shifts to Guarantor to show that a triable issue of material facts exists. Guarantor has not opposed the Motion. Plaintiff to give notice and to submit a proposed judgment within 5 days.
11	Mitchell vs. Sun West Mortgage Company, Inc. 30-2023-01329108-CU-WT-CJC	Defendant's Motion for Summary Judgment Defendant, Sun West Mortgage Company, Inc.'s motion for summary judgment or, in the alternative, summary adjudication, is DENIED. All objections are overruled as immaterial to the court's determination and preserved for appeal. (See <i>Reid v. Google, Inc.</i> (2010) 50 Cal.4th 512, 526.) Defendant's requests for judicial notice 1-4 are granted, and 5 is denied. <u>First Cause of Action – Labor Code § 2802</u> There exists a triable issue of material fact as to whether plaintiff resided in California and/or performed a majority of work in California, and therefore as to whether he can avail himself of the protections of Labor Code section 2802. <u>Second Cause of Action – Retaliation in Violation of Labor Code § 1102.5</u> There exists a triable issue of material fact as to whether the alleged retaliatory acts took place in California or outside of California. <u>Third Cause of Action – Wrongful Termination in Violation of Public Policy – Retaliation in Violation of FEHA</u> There exists a triable issue of material fact as to whether the alleged retaliatory acts took place in California or outside of California. <u>Adjudication of Issue 1</u> A party may move for summary adjudication of one or more cause of action, affirmative defense, claim for damages, or issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).) The issue sought to be adjudicated does not fall into one of these categories. Even if it did, there exists a triable issue of material fact as to whether plaintiff resided in California and/or was a California resident at the time of the alleged harassment and termination. Plaintiff to give notice.